

+31 85
4894980

secretariat@ajnjeugdartsen.nl

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UN COMMITTEE: THE NETHERLANDS MUST BETTER SAFEGUARD CHILDREN'S RIGHTS



The Netherlands must take urgent action to better uphold children's rights. This is stated by the UN Committee on the Rights of the Child in a recently published **assessment** of the Dutch situation. The committee presents a substantial list of concerns and areas for improvement, including violence against children, the childcare benefits scandal, migration, the consequences of climate change, and digital children's rights.

Every country that has ratified the UN Convention on the Rights of the Child reports every five years to the United Nations Committee on the Rights of the Child on the state of children's rights in that country. This is the fifth time the committee has issued recommendations for the Netherlands.

Benefits scandal

The UN committee believes that the Netherlands and the entire Kingdom urgently need to improve on a significant number of points. For instance, there are major disparities between the Netherlands, Aruba, Curaçao, and Sint Maarten. There are also **regional differences** within the Netherlands regarding the access children and young people have to healthcare, education, social assistance, and youth care. The municipality in which a child lives makes a difference, and this has major consequences for children in disadvantaged situations. The high number **of out-of-home placements** in the Netherlands is also concerning, with the **childcare benefits scandal** being specifically mentioned. Debt should not be a reason for out-of-home placement, according to the committee. Children harmed by the childcare benefits scandal must be able to count on compensation and psychosocial support.

The UN committee also states that children must be able to independently claim social security. Currently, that is not always the case.

Violence and digital children's rights

The Netherlands must take urgent action to combat **violence against children**, including online. The number of children who are victims of mistreatment, abuse, and (sexual) exploitation remains alarmingly high. The UN committee pays special attention to digital children's rights because children must be better protected against harmful content and online risks.

Climate

For the first time, the UN Committee on the Rights of the Child also mentions the consequences of climate change for children in its recommendations. The experts are concerned about the fact that the Netherlands has the highest number of children with **asthma due to air pollution** in Europe and urgently call on the Dutch government to take measures.

Asylum reception

The UN committee also has concerns about the way the Netherlands treats children in asylum reception, particularly in emergency accommodation. The Netherlands must be able to guarantee **child-friendly asylum reception** and limit the number

UN Committee: The Netherlands must better safeguard children's rights - AJN Youth Doctors Netherlands
of relocations of children within asylum reception as much as possible.

Previous recommendations

The UN Committee is concerned about the **lack of knowledge** regarding children's rights among children and professionals. As in 2015, it emphasizes the **importance of a** Child Rights Impact Assessment, which shows the potential consequences of legislation and policy for children and young people. Such an assessment can prevent negative consequences. Children and young people should also be able to participate more frequently in discussions about decisions that affect them. The Committee has repeatedly asked the Netherlands to ratify the **Optional Protocol on the Communications Procedure**. This would give children the opportunity to lodge a complaint if a country violates their children's rights. This is currently not possible in the Netherlands.

Positive

The UN Committee on the Rights of the Child is positive about the expansion of Article 1 of the Constitution to include a ban on discrimination on the grounds of sexual orientation or disability. The introduction of the Child Labour Due Diligence Act, the ban on corporal punishment at home in Aruba, Bonaire, Saba, and Sint Eustatius, the signing of the Convention on the Rights of Persons with Disabilities, and the appointment of a National Coordinator against Discrimination and Racism have also been positively received.

Source: Kinderrechten.nl

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